

		privacy rights can be achieved. This may need to occur through redacting records, assigning non-personally identifying numbers to individual cases so they can be tracked across documents, a protective order, or some other means. However, the court will discuss this with the parties at the 09/25/23 hearing date and will most likely continue the hearing to require parties to meet and confer privately to work out an arrangement that meets the twin goals of production and privacy protections. Once a workable plan has been presented to the court, the court will grant the motion based on that plan. No monetary sanctions will be awarded at this time as the issue of third-party privacy rights was an appropriate reason for not initially producing the records.
8	Szeto v. Woo	O/C
9	Law Office of Jeffrey G. Jacobs v. Isaacson	Before the Court at present are four unopposed discovery motions, filed on 8/24/23 by Plaintiff Law Office of Jeffrey G. Jacobs ("Plaintiff"), against Defendant Ian Isaacson ("Defendant"). The Motions filed as ROAs 43, 42 and 45, respectively, demonstrate that Form Interrogatories, Special Interrogatories, and Requests for Production, all Set One, were propounded by Plaintiff to Defendant on 12/23/22. (ROA 40, ¶ 2, Exs. B-D.) No responses were ever provided, despite repeated requests. (Id. at ¶¶ 4-17.) If responses are not timely provided to Interrogatories or Requests for Production, all objections thereto are waived, and responses may be compelled. (C.C.P. §§ 2030.290(a), (b), 2031.300(a), (b).) All three Motions are therefore GRANTED on the merits. Defendant is to provide verified responses, without objections, within 15 days after service of notice of this ruling. The Motion filed as ROA 44 demonstrates that Requests for Admission, Set One, were propounded by Plaintiff on 12/23/22. (ROA 40, ¶ 2, Ex. A.) No responses were ever provided despite repeated requests. (Id. at ¶¶ 4-17.) As no responses were timely provided, all objections have been waived. (C.C.P. §2033.280(a).) Unless responses are provided before the date of the hearing, the Court may properly order that the matters specified in the requests be deemed admitted. (C.C.P. §2033.280(b)(c).) Therefore, unless Defendant can present evidence by the time of the hearing that responses to the Requests for Admission have been served, and that such responses are in substantial compliance with C.C.P. § 2033.220, the Motion shall be GRANTED. Plaintiff's requests for monetary sanctions are GRANTED IN PART. As Plaintiff here is effectively self-represented, it cannot recover its "attorney's fees" as a sanction. (See <i>Musaelian v. Adams</i> (2009) 45 Cal.4th 512, 519; <i>Trope v. Katz</i> (1995) 11 Cal.4th 274, 280.) But it can recover its filing costs, in the amount of \$60 per motion. The Court thus finds that only the reduced sum of \$60 per motion, for a total of \$240 in sanctions, should be imposed on Defendant here. Those sanctions are to be paid to Plaintiff, through its counsel of record, within 30 days after service of notice of this ruling.

		Counsel for Plaintiff to give notice.
10	Back Bay Westminster, LLC v. Professional Real Estate Center, Inc. et al	Before the Court at present is the Demurrer filed by defendants Kevin Conklin and Back Bay Development LLC (collectively here, as moving parties, "MPs"), as to the Third and Fourth Causes of Action (each a "COA") asserted in the FAC filed by Plaintiff Back Bay Westminster, LLC ("Plaintiff") on 4/18/23. The Demurrer is SUSTAINED with 15 days leave to amend on COAs 3 and 4, as both COAs lack the requisite specificity for such claims. On a fraud claim, every element must be alleged in full, factually and specifically, including facts that show how, when, where, to whom, and by what means the representations were tendered, and when alleged against an entity, the names of the persons who made the misrepresentations, their authority to speak for the corporation, to whom they spoke, what they said or wrote, and when it was said or written. (<i>Lazar v. Sup. Court</i> (1996) 12 Cal.4th 631, 638, 645; <i>Philipson & Simon v. Gulsvig</i> (2007) 154 Cal.App.4th 347, 363; <i>Tarmann v. State Farm Mut. Auto. Ins. Co.</i> (1991) 2 Cal.App.4th 153, 157.) Here, COA 3 again just vaguely asserts at ¶ 38 that multiple defendants represented that "there was no written Residential After Sale Agreement with the seller and there were no encumbrances and/or issues pertaining or relating to the real property." That plainly fails to adequately specify who said what, how, when, where, to whom, and by what means the alleged misrepresentations were tendered. Which of them said what, to who, when? Orally, or in a writing? And in what context – responding to a specific question, or something else? This COA also seems to be attempting to assert some amalgam of a concealment claim and an affirmative misrepresentation claim, without identifying the specifics as to which is asserted against each particular defendant and why. The circumstances which allegedly warranted justifiable reliance also lack adequate specificity. The Demurrer as to COA 3 is therefore SUSTAINED, with 15 days leave to amend. COA 4 similarly lacks adequate specificity. A plaintiff alleging unfair business practices must state with reasonable particularity the facts supporting the statutory elements of the violation. (<i>Khoury v. Maly's of California, Inc.</i> (1993) 14 Cal.App.4th 612, 619.) Here, COA 4 just vaguely asserts at ¶ 52 that the prior allegations are the basis for the claim. The Demurrer as to COA 4 is therefore also SUSTAINED, with 15 days leave to amend. Counsel for MPs is to give notice of this ruling.
11	Lopez v. Bock	O/C
12	Nijst v. Anaheim Global Medical	The Motion for Summary Adjudication filed by Plaintiff Christopher Nijst by and through his guardian ad litem, Susan Russell ("Plaintiff") is DENIED.